actually living with and dependent for more than half of their support upon a military parent are not eligible for medical care.

* * * * *

(6) *Dependents of retired personnel.* Dependents of retired personnel, except those retired under Title III, Army and Air Force Vitalization and Retirement Equalization Act of 1948 (point system reservists) (62 Stat. 1084; 10 U. S. C. 1001–1007), and dependents of personnel retired or granted retirement pay for physical disability including those on the Emergency Officers' Retired List. Dependents of the above retired personnel are eligible to receive medical care irrespective of the election on the part of retired personnel to receive Veterans' Administration benefits or the necessity for the hospitalization of retired personnel at a Veterans' Administration facility.

* * * * *

(8) *Retired members of regular and reserve components.* Retired members of the regular and reserve components, except those retired under Title III, Army and Air Force Vitalization and Retirement Equalization Act of 1948.

(9) *Members of regular and reserve components retired for physical disability.* * * *

(iii) *Temporary or permanent retirement (20 years or more of active duty).* Members of the regular and reserve components temporarily or permanently retired for physical disability or receiving disability retirement pay with 20 years or more of active duty, except those with blindness, neuropsychiatric or psychiatric disorders, and tuberculosis whose hospitalization is the responsibility of the Administrator of Veterans' Affairs (see the Career Compensation Act of 1949, as implemented by Executive Order 10400, 1952).

* * * * *

[C 1, AR 40–108, Oct. 7, 1955] (R. S. 161; 5 U. S. C. 22)

[SEAL] JOHN A. KLEIN,
Major General, U. S. Army,
The Adjutant General.

[F. R. Doc. 55–8664; Filed, Oct. 26, 1955; 8:45 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1239]

[1684490]

IDAHO

PARTIALLY REVOKING EXECUTIVE ORDER NO. 7655 OF JULY 12, 1937, WHICH ESTABLISHED THE DEER FLAT MIGRATORY WATERFOWL REFUGE

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Order No. 7655 of July 12, 1937, establishing the Deer Flat Migratory Waterfowl Refuge, the name of which was changed to the Deer Flat National Wildlife Refuge by Proclamation No. 2416 of July 15, 1940, is hereby revoked so far as it affects the following-described lands:

BOISE MERIDIAN

T. 3 N., R. 3 W.,
Sec. 17, tract A.

The tract described contains 10.25 acres.

The lands are withdrawn for reclamation purposes by Departmental orders of December 22, 1903 and February 7, 1906.

WESLEY A. D'EWART,
Assistant Secretary of the Interior.

OCTOBER 21, 1955.

[F. R. Doc. 55–8666; Filed, Oct. 26, 1955; 8:45 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 924]

[Docket No. AO–225–A6]

MILK IN DETROIT, MICH., MARKETING AREA

DECISION WITH RESPECT TO PROPOSED MARKETING AGREEMENT AND PROPOSED AMENDMENTS TO ORDER, AS AMENDED

Pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (7 U. S. C. 601 et seq.), and the applicable rules of practice and procedure, as amended, governing the proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), a public hearing was conducted at Detroit, Michigan, on March 22–25, 1955, pursuant to notice thereof which was issued on March 8, 1955 (20 F. R. 1533).

Upon the basis of the evidence introduced at the hearing and the record thereof, the Deputy Administrator, Agricultural Marketing Service, on September 2, 1955, filed with the Hearing Clerk, United States Department of Agriculture, his recommended decision in the proceeding. The notice of filing such recommended decision and opportunity to file written exceptions thereto was published in the FEDERAL REGISTER on September 9, 1955 (20 F. R. 6622).

The material issues, the findings and conclusions, and the general findings of the recommended decision (20 F. R. 6622; F. R. Doc. 55–7280) are hereby approved and adopted as the material issues, the findings and conclusions, and the general findings of this decision as if set forth in full herein, subject to the following revisions:

1. On page 6623, insert after the second complete paragraph in column 2, the following: "From exceptions filed in response to the recommended decision it is clear that one of the plants located in the marketing area and operated as a distributing plant does not have Class I sales equal to as much as 45 percent of its receipts in March through August nor to 55 percent in September through February. A substantial period of time should be allowed for such a handler to develop additional Class I outlets or reduce his receipts to the extent necessary to maintain status as a pool plant. It is concluded that effectuation of that portion of the definition of a distributing pool plant which requires that the stated percentages of receipts be utilized as Class I should be postponed until September 1, 1956."

2. On page 6625, change the last sentence in the first complete paragraph in column 1 to read as follows: "On any other source milk received at a pool plant in the form of fluid whole milk or fluid skim milk the Class I price should be reduced by the amount of the location adjustment which would be applicable at the location of the plant from which the other source milk was obtained."

3. Change item (8) *Class II price*, beginning in column 2, page 6627, to read as follows:

(8) *Class II price.* In the recommended decision it was concluded that a butter-powder formula should be included as an alternative determinant of the Class II price. The present Class II price is the average of prices paid to farmers at nine Michigan manufacturing plants, except that during the months of May, June, and July, a credit is allowed on butterfat and skim milk manufactured into butter and nonfat dry milk solids in the event that butter-powder prices are below the local plant prices. The recommended decision would have provided that the Class II price be the higher of the local plant price or a butter-powder value in every month.

Nearly all the handlers who filed exceptions and some groups of producers operating manufacturing facilities objected to the recommended change in the Class II price provision. It is apparent that no substantial element in the market considers it desirable to use a butter-powder formula as an alternative price at this time. The local plant price is considered to be the most appropriate measure of the value of Class II milk.

It is concluded the butter-powder formula should not be adopted as an alternative means of setting the Class II price at this time. However, the butter-powder credit should be deleted. It has not been effective in 1953, 1954, or 1955, because butter-powder values have been in excess of the local plant price. In any event, the regulated handlers should pay at least the local plant price on milk utilized for Class II purposes in all months of the year and no incentive should be given to specialized manufacturers of butter and nonfat dry milk solids in May, June, and July.